(6) the manner by or area in which the pollutant enters the navigable waters, (7) the degree to which the pollution (at that point) has maintained its specific identity. Time and distance will be the most important factors in most cases, but not necessarily every case.

At the same time, courts can provide guidance through decisions in individual cases. The Circuits have tried to do so, often using general language somewhat similar to the language we have used. And the traditional common-law method, making decisions that provide examples that in turn lead to ever more refined principles, is sometimes useful, even in an era of statutes.

The underlying statutory objectives also provide guidance. Decisions should not create serious risks either of undermining state regulation of groundwater or of creating loopholes that undermine the statute's basic federal regulatory objectives.

EPA, too, can provide administrative guidance (within statutory boundaries) in numerous ways, including through, for example, grants of individual permits, promulgation of general permits, or the development of general rules. Indeed, over the years, EPA and the States have often considered the Act's application to discharges through groundwater.

Both Maui and the Government object that to subject discharges to navigable waters through groundwater to the statute's permitting requirements, as our interpretation will sometimes do, would vastly expand the scope of the statute, perhaps requiring permits for each of the 650,000 wells like petitioner's or for each of the over 20 million septic systems used in many Americans' homes. Brief for Petitioner 44–48; Brief for United States as *Amicus Curiae* 24–25. Cf. *Utility Air Regulatory Group* v. *EPA*, 573 U. S. 302, 324 (2014).

But EPA has applied the permitting provision to some (but not to all) discharges through groundwater for over 30 years. See *supra*, at 177. In that time we have seen no evidence of unmanageable expansion. EPA and the States also have tools to mitigate those harms, should they arise, by (for example) developing general permits for recurring situations or by issuing permits based on best practices where appropriate. See, *e. g.,* 40 CFR § 122.44(k) (2019). Judges, too, can mitigate any hardship or injustice when they apply the statute's penalty provision. That provision vests courts with broad discretion to set a penalty that takes account of many factors, including "any good-faith efforts to comply" with the Act, the "seriousness of the violation," the "economic impact of the penalty on the violator," and "such other matters as justice may require." See 33 U. S. C. § 1319(d). We expect that district judges will exercise their discretion mindful, as we are, of the complexities inherent to the context of indirect discharges through groundwater, so as to calibrate the Act's penalties when, for example, a party could reasonably have thought that a permit was not required.

In sum, we recognize that a more absolute position, such as the means-of-delivery test or that of the Government or that of the Ninth Circuit, may be easier to administer. But, as we have said, those positions have consequences that are inconsistent with major congressional objectives, as revealed by the statute's language, structure, and purposes. We consequently understand the permitting requirement, § 301, as applicable to a discharge (from a point source) of pollutants that reach navigable waters after traveling through groundwater if that discharge is the functional equivalent of a direct discharge from the point source into navigable waters.

VI

Because the Ninth Circuit applied a different standard, we vacate its judgment and remand the case for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE KAVANAUGH, concurring.

I join the Court's opinion in full. I write separately to emphasize three points.

First, the Court's interpretation of the Clean Water Act regarding pollution "from" point sources adheres to the interpretation set forth in Justice Scalia's plurality opinion in *Rapanos* v. *United States*, 547 U. S. 715 (2006). The Clean Water Act requires a permit for "any addition of any pollutant to navigable waters from any point source." 33 U. S. C. § 1362(12)(A); see §§ 1311(a), 1342(a). The key word is "from." The question in this case is whether the County of Maui needs a permit for its Lahaina Wastewater Reclamation Facility. No one disputes that pollutants originated at Maui's wastewater facility (a point source), and no one disputes that the pollutants ended up in the Pacific Ocean (a navigable water). Maui contends, however, that it does not need a permit. Maui says that the pollutants did not come "from" the Lahaina facility because the pollutants traveled through groundwater before reaching the ocean.

Justice Scalia's plurality opinion in *Rapanos* explained why Maui's interpretation of the Clean Water Act is incorrect. In that case, Justice Scalia stated that polluters could not "evade the permitting requirement of § 1342(a) simply by discharging their pollutants into noncovered intermittent watercourses that lie upstream of covered waters." 547 U. S., at 742–743. Justice Scalia reasoned that the Clean Water Act does not merely "forbid the 'addition of any pollutant *directly* to navigable waters from any point source,' but rather the 'addition of any pollutant *to* navigable waters.' Thus, from the time of the CWA's enactment, lower courts have held that the discharge into intermittent channels of any pollutant *that naturally washes downstream* likely violates § 1311(a), even if the pollutants discharged from a point source do not emit 'directly into' covered waters, but pass 'through conveyances' in between." *Id.*, at 743 (citations omitted).

In other words, under Justice Scalia's interpretation in *Rapanos*, the fact that the pollutants from Maui's wastewater facility reach the ocean via an indirect route does not itself exempt Maui's facility from the Clean Water Act's permitting requirement for point sources. The Court today adheres to Justice Scalia's analysis in *Rapanos* on that issue.

Second, as Justice Scalia's opinion in *Rapanos* pointed out and as the Court's opinion today explains, the statute does not establish a bright-line test regarding when a pollutant may be considered to have come "from" a point source. The source of the vagueness is Congress' statutory text, not the Court's opinion. The Court's opinion seeks to translate the vague statutory text into more concrete guidance.

Third, JUSTICE THOMAS' dissent states that "the Court does not commit" to "which factors are the most important" in determining whether pollutants that enter navigable waters come "from" a point source. *Post*, at 192. That critique is not accurate, as I read the Court's opinion. The Court identifies relevant factors to consider and emphasizes that "[t]ime and distance are obviously important." *Ante*, at 184. And the Court expressly adds that "[t]ime and distance will be the most important factors in most cases, but not necessarily every case." *Ante*, at 185. Although the statutory text does not supply a bright-line test, the Court's emphasis on time and distance will help guide application of the statutory standard going forward.

With those additional comments, I join the Court's opinion in full.

JUSTICE THOMAS, with whom JUSTICE GORSUCH joins, dissenting.

The Clean Water Act (CWA) requires a federal permit for "the discharge of any pollutant by any person." 33 U. S. C. § 1311(a); see § 1342. The CWA defines a "discharge" as "any addition of any pollutant to navigable waters from any point source." § 1362(12).[1] Based on the statutory text and structure, I would hold that a permit is required only when a point source discharges pollutants directly into navigable waters. The Court adopts this interpretation in part, concluding that a permit is required for "a direct discharge." *Ante*, at 183. But the Court then departs from the statutory text by requiring a permit for "the *functional equivalent of a direct discharge*," *ibid.*, which it defines through an open-ended inquiry into congressional intent and practical considerations. Because I would adhere to the text, I respectfully dissent.

I

A

In interpreting the statutory definition of "discharge," the Court focuses on the word "from," but the most helpful word is "addition." That word, together with "to" and "from," limits the meaning of "discharge" to the augmentation of navigable waters.

Dictionary definitions of "addition" denote an augmentation or increase. Webster's Third New International Dictionary defines "addition" as "the act or process of adding: the joining or uniting of one thing to another." Webster's Third New International Dictionary 24 (1961); see also *ibid.* (listing "increase" and "augmentation" as synonyms for "addition"). Other dictionary definitions from around the time of the statute's enactment are in accord. See, *e. g.*, American Heritage Dictionary 14, 15 (1981) (defining "addition" as "[t]he act or process of adding" and defining "add" as "[t]o

[1] The CWA defines "navigable waters" as "the waters of the United States, including the territorial seas." § 1362(7). It defines a "point source" as "any discernible, confined and discrete conveyance, including but not limited to any pipe, ditch, channel, tunnel, conduit, well, discrete fissure, container, rolling stock, concentrated animal feeding operation, or vessel or other floating craft, from which pollutants are or may be discharged," excluding "agricultural stormwater discharges and return flows from irrigated agriculture." § 1362(14).

join or unite so as to increase in size, quantity, or scope"); see also Webster's New International Dictionary 29, 30 (2d ed. 1957) (defining "addition" as the "[a]ct, process, or instance of adding," and defining "add" as to "join or unite, as one thing to another, or as several particulars, so as to increase the number, augment the quantity, enlarge the magnitude, or so as to form into one aggregate").

The inclusion of the term "addition" in the CWA indicates that the statute excludes anything other than a direct discharge. When a point source releases pollutants to groundwater, one would naturally say that the groundwater has been augmented with pollutants from the point source. If the pollutants eventually reach navigable waters, one would not naturally say that the navigable waters have been augmented with pollutants from the point source. The augmentation instead occurs with pollutants from the groundwater.

The prepositions "from" and "to" reinforce this reading. When pollutants are released from a point source to another point source or groundwater, they are added *to* the second *from* the first. If the pollutants are later released to navigable waters, they are added *to* the navigable waters *from* the second point source or the groundwater. One would not naturally say that the pollutants are added to the navigable waters from the original point source.

Interpreting "discharge" to mean a direct discharge makes sense of other parts of the definition as well. It respects the statutory definition of a point source as a "conveyance," see § 1362(14), because a point source that releases pollutants directly into navigable waters is a means of conveyance. And it makes sense of the word "any" before "point source," because that term clarifies that any kind of point source may require a permit.

The structure of the CWA confirms this interpretation. It authorizes the Environmental Protection Agency (EPA) to regulate discharges from point sources, including through the permitting process, but it reserves to the States the primary responsibility for regulating other sources of pollution, including groundwater. With respect to these sources, the EPA merely collects information, coordinates with the States, and provides funding. See 33 U. S. C. §§ 1252(a), 1254(a)(5), 1282(b)(2), 1288, 1314(a), 1329; *ante*, at 175. In the CWA, Congress expressly stated its "policy . . . to recognize, preserve, and protect the primary responsibilities and rights of States to prevent, reduce, and eliminate pollution." § 1251(b). Thus, construing the EPA's power to regulate point sources to allow the agency to regulate nonpoint sources and groundwater is in serious tension with Congress' design.

My reading is also consistent with our decision in *South Fla. Water Management Dist.* v. *Miccosukee Tribe*, 541 U. S. 95 (2004). The petitioner in that case argued that no permit was required when a point source was not the original source of the pollutant but instead conveyed the pollutant from further up a chain of sources. *Id.*, at 104. We rejected that argument because "a point source need not be the original source of the pollutant; it need only convey the pollutant to 'navigable waters.'" *Id.*, at 105. Although that case did not involve the exact question presented here, the direct-discharge interpretation comports well with that previous decision.

B

The Court's main textual argument reads the word "from" in isolation. But as the Court recognizes, "the word 'from' necessarily draws its meaning from context." *Ante*, at 178. The Court's example using "arrive" instead of "addition" is thus unpersuasive, *ante,* at 181–182, because "from" takes different meanings with different verbs. The Court's culinary example also misses the mark, *ante,* at 182, because if the drippings from the meat collect in the pan before the chef adds them to the gravy, the drippings are added to the gravy from the pan, not from the meat. This point becomes clear if we reorder the majority's recipe to match the statute; the chef has not added the drippings to the gravy from the meat. The Court's bathwater example, *ibid.*, suffers from the same problem; if the well water is put in a bucket before it is put in the bathtub, it is added to the bathtub from the bucket. Only by reading the phrase in its entirety can we interpret the definition of "discharge." See *Deal* v. *United States*, 508 U. S. 129, 132 (1993).

The Court also asserts that a narrower reading than the one it adopts would create a "massive loophole" in the statute. *Ante*, at 183. Far from creating a loophole, my reading is the most logical because it is consonant with the scope of Congress' power. The CWA presumably was passed as an exercise of Congress' authority "[t]o regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes." U. S. Const., Art. I, § 8, cl. 3. My interpretation ties the statute more closely to navigable waters, on the theory that they are at least a channel of these kinds of commerce.

Further, the Court's interpretation creates practical problems of its own. As the Court acknowledges, its opinion gives almost no guidance, save for a list of seven factors. But the Court does not commit to whether those factors are the only relevant ones, whether those factors are always relevant, or which factors are the most important. See *ante*, at 183–185. It ultimately does little to explain how functionally equivalent an indirect discharge must be to require a permit.[2]

[2] JUSTICE KAVANAUGH believes that the Court's opinion provides enough guidance when it states that "[t]ime and distance will be the most important factors in most cases, *but not necessarily every case*," *ante*, at 185 (majority opinion) (emphasis added). See *ante*, at 188 (concurring opinion). His hope for guidance appears misplaced. For all we know, these factors may not be the most important in 49 percent of cases. The majority's nonexhaustive seven-factor test "may aid in identifying relevant facts for analysis, but—like most multifactor tests—it leaves courts adrift once those facts have been identified." *Dietz* v. *Bouldin*, 579 U. S. 40, 57 (2016) (THOMAS, J., dissenting); see also Scalia, The Rule of Law as a Law

The Court suggests that the EPA could clarify matters through "administrative guidance," *ante*, at 185, but so far the EPA has provided only limited advice and recently shifted its position, see 84 Fed. Reg. 16810 (2019); *ante*, at 173. In any event, the sort of "'general rules'" that the Court hopes the EPA will promulgate are constitutionally suspect. See *Department of Transportation* v. *Association of American Railroads*, 575 U. S. 43, 67–87 (2015) (THOMAS, J., concurring in judgment).

Despite giving minimal guidance as to how this case should be decided on remand, the majority speculates about whether a permit would be required in other factual circumstances. It poses the examples of a pipe that releases pollutants over navigable waters and a pipe that releases pollutants onto land near navigable waters. As an initial matter, I am not as sure as the majority that a "pollutant," as defined by the CWA, may be added to the air.[3] Even if the majority is correct that a permit is not required in these hypothetical cases, drawing the line at discharges to water is not so absurd as to undermine the most natural reading of the statute. In any event, it is unnecessary to decide these hypothetical cases today.

Finally, the Court speculates as to "those circumstances in which Congress intended to require a federal permit." *Ante*, at 183. But we are not a superlegislature (or super-EPA) tasked with making good policy—assuming that is

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of Rules, 56 U. Chi. L. Rev. 1175, 1186–1187 (1989) (noting that "when balancing is the mode of analysis, not much general guidance may be drawn from the opinion" and arguing that "totality of the circumstances tests and balancing modes of analysis" should "be avoided where possible").

[3] The CWA defines a "pollutant" as "dredged spoil, solid waste, incinerator residue, sewage, garbage, sewage sludge, munitions, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt and industrial, municipal, and agricultural waste discharged into water," with certain exceptions. § 1362(6).

even what the Court accomplishes today. "Our job is to follow the text even if doing so will supposedly undercut a basic objective of the statute." *Baker Botts L. L. P.* v. *ASARCO LLC*, 576 U. S. 121, 135 (2015) (internal quotation marks omitted).

II

I do agree with the Court on several points. First, the interpretation adopted by respondents and the Ninth Circuit is unsupportable. That interpretation—which would require permits for discharges that are " 'fairly traceable' " to, and proximately caused by, a point source—is atextual and unsettles the CWA's careful balance between federal regulation of point-source pollution and state regulation of nonpoint-source pollution. *Ante*, at 174–178.

Second, I agree that the interpretation adopted by petitioner and JUSTICE ALITO reads the word "any" unnaturally, *ante*, at 179, although the majority appears to deploy that argument itself in another part of the opinion, *ante*, at 182. Petitioner's and JUSTICE ALITO's interpretation also gives insufficient weight to the meaning of "addition," see *supra*, at 189–190.

Third, I agree that the EPA's interpretation is not entitled to deference for at least two reasons: No party requests it, and the EPA's reading is not the best one. *Ante*, at 180–181. I add only that deference under *Chevron U. S. A. Inc.* v. *Natural Resources Defense Council, Inc.*, 467 U. S. 837 (1984), likely conflicts with the Vesting Clauses of the Constitution. See *Baldwin* v. *United States*, 589 U. S. 1237, 1238–1245 (2020) (THOMAS, J., dissenting from denial of certiorari); *Michigan* v. *EPA*, 576 U. S. 743, 761–764 (2015) (THOMAS, J., concurring); see also *Perez* v. *Mortgage Bankers Assn.*, 575 U. S. 92, 115–126 (2015) (THOMAS, J., concurring in judgment).

Finally, I agree with the Court's implicit conclusion that *Rapanos* v. *United States*, 547 U. S. 715 (2006), does not resolve this case. That plurality opinion, which I joined, observed that lower courts have required a permit when pollutants pass through a chain of point sources. *Id.*, at 743–744. But we expressly said in *Rapanos* that "we [did] not decide this issue." *Id.*, at 743. We are not bound by dictum in a plurality opinion or by the lower court opinions it cited.

III

The best reading of the statute is that a "discharge" is the release of pollutants directly from a point source to navigable waters. The application of this interpretation to the undisputed facts of this case makes a remand unnecessary. Petitioner operates a wastewater treatment facility and injects treated wastewater into four underground injection control wells. All parties agree that the wastewater enters groundwater from the wells and does not directly enter navigable waters. Based on these undisputed facts, there is no "discharge," so I would reverse the judgment of the Ninth Circuit. I respectfully dissent.

Justice Alito, dissenting.

If the Court is going to devise its own legal rules, instead of interpreting those enacted by Congress, it might at least adopt rules that can be applied with a modicum of consistency. Here, however, the Court makes up a rule that provides no clear guidance and invites arbitrary and inconsistent application.

The text of the Clean Water Act generally requires a permit when a discharge "from" a "point source" (such as a pipe) "add[s]" a pollutant "to" navigable waters (such as the Pacific Ocean). 33 U. S. C. § 1362(12). There are two ways to read this text. A pollutant that reaches the ocean could be understood to have been added "from" a pipe if the pipe originally discharged the pollutant and the pollutant eventually made its way to the ocean by flowing over or under the surface of the ground. Or a pollutant that reaches the ocean could be understood to have come "from" a pipe if the pollutant is discharged from the pipe directly into the ocean.

There is no comprehensible alternative to these two interpretations, but the Court refuses to accept either. Both alternatives, it believes, lead to unacceptable results, and it therefore tries to find a middle way. It holds that a permit is required "when there is a direct discharge from a point source into navigable waters or when there is the *functional equivalent of a direct discharge*." *Ante*, at 183. This is not a plausible interpretation of the statutory text and, to make matters worse, the Court's test has no clear meaning.

Just what is the "functional equivalent" of a "direct discharge"? The Court provides no real answer. All it will say is that the distance a pollutant travels and the time this trip entails are the most important factors, but *at least five other factors* may have a bearing on the question, and even this list is not exhaustive. *Ante*, at 184–185. Entities like water treatment authorities that need to know whether they must get a permit are left to guess how this nebulous standard will be applied. Regulators are given the discretion, at least in the first instance, to make of this standard what they will. And the lower courts? The Court's advice, in essence, is: "That's your problem. Muddle through as best you can."

I

Petitioner, the County of Maui (County), built the Lahaina Wastewater Reclamation Facility in the 1970s. Excerpts of Record 304. The facility receives sewage and then discharges treated wastewater into wells (essentially long pipes) that extend 200 feet or more below ground level. *Id.*, at 694–695. Some of this discharge enters an aquifer below the facility. *Id.*, at 696.

In all the years of its operation, the facility has never had a National Pollution Discharge Elimination System (NPDES) permit for discharges from the wells, a fact that has been well known to both the EPA and the Hawaii Department of Health (HDOH). The EPA helped to finance the construction of the facility with a Clean Water Act grant. *Id.*, at 141. In 1973, before breaking ground on the facility, the County prepared an environmental impact report and shared it with the EPA and the HDOH. *Id.*, at 140, 342. The report predicted that effluent injected into groundwater from the wells would "eventually reach the ocean some distance from the shore." *Id.*, at 342. Both the EPA and the HDOH received and submitted comments on the report without any mention of a need for permitting discharges from the wells. *Id.*, at 140. Six years later, the HDOH issued an NPDES permit to the facility—but not for the wells. (The permit covered separate discharges to the Honokowai Stream.) *Id.*, at 141, 223–224. And in a May 1985 NPDES Compliance Monitoring Report, the EPA concluded that the County was operating in compliance with the permit, because all effluent was entering the injection wells—and was thus destined for groundwater rather than for navigable waters or for use in irrigation. *Id.*, at 141, 222. In 1994, the HDOH again informed the EPA that "all experts agree that the wastewater does enter the ocean." *Id.*, at 369. And again—nothing from the federal authorities.

Thus, despite nearly five decades of notice that effluent from the facility would make, or was making, its way via groundwater to the ocean, neither the EPA nor the HDOH required NPDES permitting for the Lahaina wells. App. to Pet. for Cert. 138, 143. Indeed, none of the more than 6,600 underground injection wells in Hawaii currently has an NPDES permit.[1]

In 2012, however, as the Court recounts, respondents filed a citizen suit claiming that the Lahaina facility was violating

[1] EPA, FY 2018 State Underground Injection Control Inventory, https://www.epa.gov/uic/uic-injection-well-inventory; EPA, Hawaii NPDES Permits: Draft and Final NPDES Permits, https://www.epa.gov/npdes-permits/hawaii-npdes-permits.

the Clean Water Act by discharging pollutants into the ocean without a permit. The District Court granted summary judgment against the County on the issue of liability because pollutants "can be directly traced from the injection wells to the ocean." 24 F. Supp. 3d 980, 998 (Haw. 2014) (emphasis deleted).

The parties then entered into a conditional settlement that would take effect if the County were unsuccessful on appeal. Under that agreement, the County must: make good-faith efforts to obtain and comply with an NPDES permit; pay $100,000 in civil penalties; spend $2.5 million on a "supplemental environmental project" in the western part of the island of Maui; and pay nearly $1 million for respondents' attorney's fees and other costs of litigation.[2]

On appeal, the Ninth Circuit affirmed on the ground that pollutants that eventually reached the ocean were "fairly traceable" to the wells. 886 F. 3d 737, 749 (2018). We granted review and must now decide whether the Court of Appeals erred in holding that the discharge of effluent from the wells into groundwater requires a permit.

II

The Clean Water Act generally makes it unlawful to "discharge" a "pollutant"[3] without a permit. 33 U. S. C. § 1311(a). The Act defines the "discharge of a pollutant" as "any addition of any pollutant to navigable waters[[4]] from

[2] Settlement Agreement and Order re: Remedies in No. 1:12–cv–198, Doc. 259 (Haw.); Stipulated Settlement Agreement Regarding Award of Plaintiffs' Costs of Litigation, *ibid.*, Doc. 267 (Haw.).

[3] The Act defines a "pollutant" as:

"dredged spoil, solid waste, incinerator residue, sewage, garbage, sewage sludge, munitions, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt and industrial, municipal, and agricultural waste discharged into water . . . ." § 1362(6).

[4] The Act defines "navigable waters" as "waters of the United States, including the territorial seas." § 1362(7). The term "navigable waters" has a well-known meaning, but the broader term "waters of the United

any point source." § 1362(12). And a "point source" is broadly defined as "any discernible, confined and discrete conveyance . . . from which pollutants are or may be discharged." § 1362(14). The Act includes a non-exhaustive list of conveyances that fall within this definition, and included on that list are such things as "pipe[s]," "ditch[es]," "channel[s]," and "well[s]." *Ibid.*

Putting all these statutory terms together, the rule can be stated as follows: A permit is required when a pollutant is "add[ed]" to navigable waters "from" a "point source." In this case, the parties and the EPA agree that *most* of the elements of this rule are met. Specifically, they agree that: The effluent emitted by the wells is a "pollutant"; this effluent reaches navigable waters (the Pacific Ocean); and the wells are "point source[s]." The disputed question is whether the emission of effluent from those wells qualifies as a "discharge," that is, the addition of a pollutant "*from*" *a point source*. § 1362(12) (emphasis added).

There are two possible interpretations of this phrase. The first is that pollutants are added to navigable waters from a point source whenever they originally came from the point source. The second is that pollutants are added to navigable waters only if they were discharged from a point source directly into navigable waters.

Dissatisfied with those options, the Court tries to find a third, but its interpretation is very hard to fit into the statutory text. Under the Court's interpretation, it appears that a pollutant that leaves a point source and heads toward navigable waters via some non-point source (such as by flowing over the ground or by means of groundwater) is "from" the point source for some portion of its journey, but once it has

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States" is not defined by the Clean Water Act and has presented a difficult issue for this Court. See *Rapanos* v. *United States*, 547 U. S. 715 (2006). The EPA's definition of "waters of the United States" expressly excludes groundwater, see 40 CFR § 122.2 (2019); 84 Fed. Reg. 4190 (2019), and no party in this case disputes that interpretation.

travelled a certain distance or once a certain amount of time has elapsed, it is no longer "from" the point source and is instead "from" a non-point source.

This is an implausible reading of the statute. The Court has many inventive examples of the different meanings that can be conveyed by the simple statement that A comes from B, but one of the Court's examples—the traveler who flies from Europe to Baltimore—illustrates the problem. If we apply the Court's interpretation of § 1362 to this traveler's journey, he would be "from" Europe for the first part of the flight, but at some point he might cease to be "from" Europe and would then be from someplace else, maybe Greenland or geographical coordinates in the middle of the Atlantic. This is a very strange notion, and therefore, I think the statutory text compels us to choose between the two alternatives set out above.

The Court rejects both of these because it thinks they lead to unacceptably extreme results. "Originally from" would impose liability even if pollutants discharged into ground water had to travel 250 miles over the course of 100 years before reaching navigable waters. See *ante*, at 174. And " 'immediately' " or " 'directly' from," the Court thinks, would mean that a polluter could evade the permit requirement by discharging pollutants from a pipe located just a few feet from navigable waters. *Ante*, at 182.

To escape these possibilities, the Court devises its own test: A permit is required, the Court holds, "when there is a direct discharge from a point source into navigable waters or when there is the *functional equivalent of a direct discharge.*" *Ante*, at 183 (emphasis in original). The Clean Water Act, however, says nothing about "the functional equivalent" of a direct discharge. That is the Court's own concoction, and the Court provides no clear explanation of its meaning.

The term "functional equivalent" may have a quasi-technical ring, but what does it mean? "Equivalent" means "equal" in some respect, and "functional" signifies a relationship to a function. The function of a direct discharge from a point source into navigable waters is to convey the entirety of the discharge into navigable waters without any delay. Therefore, the "functional equivalent" of a direct discharge of a pollutant into navigable waters would seem to be a discharge that is equal to a direct discharge in these respects.

If that is what the Court meant by "the functional equivalent of a direct discharge," the test would apply at best to only a small set of situations not involving a direct discharge. The Court's example of a pipe that emits pollutants a few feet from the ocean would presumably qualify on *de minimis* grounds, but if the pipe were moved back any significant distance, the discharge would not be exactly equal to a direct discharge. There would be some lag from the time of the discharge to the time when the pollutant reaches navigable waters; some of the pollutant might not reach that destination; and the pollutant might have changed somewhat in composition by the time it reached the navigable waters.

For these reasons, the Court's reference to "the functional equivalent of a direct discharge," if taken literally, would be of little importance, but the Court's understanding of this concept is very different from the literal meaning of the phrase. As used by the Court, "the functional equivalent of a direct discharge" means a discharge that is sufficiently similar to a direct discharge to warrant a permit in light of the Clean Water Act's "language, structure, and purposes." See *ante*, at 186. But what, in concrete terms, does this mean? How similar is sufficiently similar?

The Court provides this guidance. It explains that time and distance are the most important factors, *ante*, at 184, but it does not set any time or distance limits except to observe that a permit is needed where the discharge is a few feet away from navigable waters and that a permit is not required where the discharge is far away and it takes "many years" for the pollutants to complete the journey. *Ibid.*

Beyond this, the Court provides a list (and a non-exhaustive one at that!) of five other factors that *may* be relevant: "the nature of the material through which the pollutant travels," "the extent to which the pollutant is diluted or chemically changed as it travels," "the amount of pollutant entering the navigable waters relative to the amount of the pollutant that leaves the point source," "the manner by or area in which the pollutant enters the navigable waters," and "the degree to which the pollution (at that point) has maintained its specific identity." *Ante*, at 184–185.

The Court admits that its rule "does not, on its own, clearly explain how to deal with middle instances," *ante*, at 184, but that admission does not go far enough. How the rule applies to "middle instances" is anybody's guess. Except in extreme cases, dischargers will be able to argue that the Court's multifactor test does not require a permit. Opponents will be able to make the opposite argument. Regulators will be able to justify whatever result they prefer in a particular case. And judges will be left at sea.

III

A

Instead of concocting our own rule, I would interpret the words of the statute, and in my view, the better of the two possible interpretations is that a permit is required when a pollutant is discharged directly from a point source to navigable waters. This interpretation is consistent with the statutory language and better fits the overall scheme of the Clean Water Act. And properly understood, it does not have the sort of extreme consequences that the Court finds unacceptable.

Take the Court's example of a pipe that discharges pollutants a short distance from the ocean. *Ante*, at 178. This pipe qualifies as a point source. 33 U. S. C. § 1362(14). If its discharge goes directly into another point source and that point source discharges directly into navigable waters, there is a direct discharge into navigable waters, and a permit is needed. See *Rapanos* v. *United States*, 547 U. S. 715, 743–744 (2006) (plurality opinion).[5]

[5] Justice Thomas describes his preferred holding in similar terms: "[A] permit is required only when a point source discharges pollutants directly into navigable waters." *Ante*, at 189 (dissenting opinion). But I take Justice Thomas's opinion to foreclose liability in one situation where I believe a permit would be required: a discharge from multiple, linked point sources. In my view, a permit is required in that instance because a pollutant would ultimately be added to navigable waters directly from a point source.

Justice Scalia's opinion in *Rapanos*, 547 U. S., at 743–744 (plurality opinion), supports this conclusion. *Rapanos* addressed the meaning of the term "waters of the United States," and Justice Scalia's opinion concluded that this term does not apply to "[w]etlands with only an intermittent, physically remote hydrologic connection to [such waters]." *Id.*, at 742. At one point in his opinion, Justice Scalia responded to the argument that this interpretation would allow polluters to evade the permit requirement "simply by discharging their pollutants into noncovered intermittent watercourses that lie upstream of covered waters." *Id.*, at 743. Arguing that this was not likely to occur, he identified two lines of lower court authority that would prevent such evasion, but he did not endorse either. *Ibid.*

One of these lines was based on exactly the interpretation set out in this opinion, namely, that "such upstream, intermittently flowing channels themselves constitute 'point sources' " under the Act's broad definition of that term. *Ibid.* The other line, as described in Justice Scalia's opinion, "held that the discharge into intermittent channels of any pollutant *that naturally washes downstream* likely [requires a permit] even if the pollutants discharged from a point source do not emit 'directly into' covered waters, but pass 'through conveyances' in between." *Ibid.* (emphasis in original). To the extent these lower court cases are understood as holding that a permit is required whenever a pollutant "naturally" reaches waters of the United States, their reasoning would conflict with the Court's rejection of the theory that a permit is required whenever a pollutant that originated from a point source ultimately reaches covered waters. But as Justice Scalia noted, in the two cases he cited, the pollutants were discharged from point sources into "conveyances" that, in turn, brought

That a permit is required in this situation is important because the Clean Water Act's definition of a "point source" is very broad, and as a result, many discharges onto the surface of land are likely to be covered. As noted, "point source[s]" include "ditch[es]" and "channel[s]," as well as "any discernible, confined and discrete conveyance . . . from which pollutants . . . may be discharged." § 1362(14). Therefore if water discharged on the surface of the land finds or creates a passage leading to navigable waters, a permit may be required if the course that the discharge takes is (1) a "conveyance" that is (2) "discernible" and (3) "confined."

Those three requirements are rather easily satisfied. When a liquid flows over the surface of land to navigable waters, the surface is a conveyance, *i. e.*, a "means of carrying or transporting something" from one place to another. Webster's Third New International Dictionary 499 (1971) (Webster's Third); Random House Dictionary of the English Language 320 (1967) (Random House).[6] This conveyance

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the pollutants to covered waters. *Ibid.* And the conveyances in both cases, a sewer system and tunnel, *ibid.*, could easily fall within the broad definition of a point source.

In short, at least one and perhaps both of the lines of lower court cases to which Justice Scalia referred are fully consistent with the interpretation set out in this opinion. The same is true of his statement, discussed by Justice Kavanaugh, *ante*, at 187–188 (concurring opinion), that the Clean Water Act "does not forbid the 'addition of any pollutant *directly* to navigable waters from any point source.'" 547 U. S., at 743. As noted, Justice Scalia's opinion is open to the possibility that a permit is required if point source A discharges into point source B, and point source B then discharges into covered waters. Thus, his opinion apparently regards that situation as involving an indirect discharge. I would describe that discharge as direct because point source B discharges directly into covered waters, but the difference is purely semantic.

[6] As we have said, the Act's point-source "definition makes plain that a point source need not be the original source of the pollutant; it need only convey the pollutant to 'navigable waters,' which are, in turn, defined as 'the waters of the United States.'" *South Fla. Water Management Dist.* v. *Miccosukee Tribe*, 541 U. S. 95, 105 (2004). The label is a bit of a misnomer: Although labeled "point sources," "[t]ellingly, the examples . . . listed